

nature of its claim.

E. Leave to Amend

The facts and admissions asserted by Global preclude amendment in this case. Therefore, as a matter of law, Global cannot support a claim for writ of mandate under the circumstances.

12. 9:00 AM CASE NUMBER: N25-0754
CASE NAME: VANTAGE POINT LAW, INC. VS. DAN MIERZWA
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PETITION AND MEMORANDUM OF POINTS AND AUTHORITIES (CONTINUED FROM 03.27.2026)**
FILED BY:
TENTATIVE RULING:

Please see Line 11.

13. 9:00 AM CASE NUMBER: N25-0754
CASE NAME: VANTAGE POINT LAW, INC. VS. DAN MIERZWA
HEARING ON DEMURRER TO: COMPLAINT (CONTINUED FROM: 03/27/2026)
FILED BY:
TENTATIVE RULING:

Please see Line 11.

14. 9:00 AM CASE NUMBER: N25-0754
CASE NAME: VANTAGE POINT LAW, INC. VS. DAN MIERZWA
HEARING ON DEMURRER TO: TO PETITION FOR WRIT OF MANDATE (CONTINUED FROM: 03/27/2026)
FILED BY:
TENTATIVE RULING:

Please see Line 11.

15. 9:00 AM CASE NUMBER: N25-0754
CASE NAME: VANTAGE POINT LAW, INC. VS. DAN MIERZWA
HEARING ON DEMURRER TO: 1ST AMENDED PETITION (CONTINUED FROM: 03/27/2026)
FILED BY:
TENTATIVE RULING:

Please see Line 11.

16. 9:00 AM CASE NUMBER: N25-0754
CASE NAME: VANTAGE POINT LAW, INC. VS. DAN MIERZWA
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PETITIONERS FIRST AMENDED PETITION FOR WRIT OF MANDATE (CONTINUED FROM 03.27.2026)**
FILED BY:
TENTATIVE RULING:

Please see Line 11.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C25-01045
CASE NAME: JOSE LOPEZ-VALDEZ VS. LYFT, INC.,
***HEARING ON MOTION FOR DISCOVERY COMPEL CROSS-DEFENDANT MICHAEL JENKINS' FURTHER RESPONSES TO FORM INTERROGATORIES, SET ONE**
FILED BY: D & A CARRIER, INC,
TENTATIVE RULING:

On May 22, 2026, the Court granted Defendant Lyft's Motion to Compel Arbitration and stayed this action. The court ordered, "Lyft and plaintiff shall submit the action to arbitration and the action is otherwise stayed, including all proceedings against D & A Carrier, Inc.; Jose Noriega, Michael Jenkins, and Intervenor, Mobilitas Insurance Company, as well as any cross-actions filed by the Parties."

Once a court grants a motion to compel arbitration, the case enters what has been called "the twilight zone of abatement," in which the court maintains "merely a vestigial jurisdiction over matters submitted to arbitration." (Brock v. Kaiser Foundation Hospitals (1992) 10 Cal.App.4th 1790, 1796.) This vestigial jurisdiction generally "consists solely of making the determination, upon conclusion of the arbitration proceedings, of whether there was an award on the merits ... or not...." (Id.) It follows that this court has no jurisdiction to adjudicate discovery motions pertaining to this lawsuit.

Accordingly, the court lacks jurisdiction to rule on this discovery motion and it is dropped from calendar without prejudice.

18. 9:01 AM CASE NUMBER: C25-01045
CASE NAME: JOSE LOPEZ-VALDEZ VS. LYFT, INC.,
***HEARING ON MOTION FOR DISCOVERY COMPEL CROSS-DEFENDANT MICHAEL JENKINS' FURTHER RESPONSES TO REQUESTS FOR ADMISSION, SET ONE**
FILED BY: D & A CARRIER, INC,
TENTATIVE RULING:

On May 22, 2026, the Court granted Defendant Lyft's Motion to Compel Arbitration and stayed this action. The court ordered, "Lyft and plaintiff shall submit the action to arbitration and the action is otherwise stayed, including all proceedings against D & A Carrier, Inc.; Jose Noriega, Michael Jenkins, and Intervenor, Mobilitas Insurance Company, as well as any cross-actions filed by the Parties."